

Vendor Confidentiality and Non – Disclosure Agreement

Name of Vendor: _____

To: Fidel Softech Ltd.
“Marisoft IT Park 3, 2nd Floor, West Wing , Kalyani Nagar, Pune 411014. India.

- A. I am aware that in the course of any assignment by FIDEL SOFTECH as an vendor, I may have access to customers’ health, financial, legal and other personal and business confidential information; product ideas, inventions, formulas and designs; business and product plans and pricing; production and processing information; training materials, computer programs; and other secret and proprietary information; and that in order for FIDEL SOFTECH to maintain a competitive position, any such information must be kept in confidence by me and used only in connection with the work assigned to me by FIDEL SOFTECH.

Therefore in consideration of my engagement as an Vendor from time to time, by FIDEL SOFTECH, I agree:

1. I will hold in strict confidence, and will not use, assist others to use, or disclose to anyone, without the prior express written authorization of FIDEL SOFTECH or requester’s administration, any information concerning such proprietary information and any secret or confidential matter, except as such use or disclosure may be required in order to carry out any interpretation/translation assignment scheduled for me by FIDEL SOFTECH.
2. That I shall not derive any personal profit or advantage from any confidential information that I may acquire during my interpretation/translation services assigned to me by FIDEL SOFTECH.
3. That translated documents remain the property of the owner of the original documents and/or the requester of my services at all times.
4. At the time I terminate my relationship with FIDEL SOFTECH, for any reason, I will deliver to FIDEL SOFTECH all documents related to the business and to the secret and propriety information referred to above, and I will not retain any such information for myself, including any and all means from which the information can be recovered or reproduced in any form.
5. That Individually identifiable data is confidential and is protected by various state, federal and international laws (e.g. RCW 42.17, 70.02 and 74.04.060).

6. That confidential data includes all personal information (e.g., name, birth date, social security number) which may, in any manner, identify the individual.
 7. That confidential data may be used only for purposes directly related to the operation of the contractor's program(s).
 8. That any personal use of confidential data is strictly prohibited.
 9. Access to data must be limited to those staff whose duties specifically require access to such data in the performance of their assigned duties.
- B. It is understood that with the exception of A-4 above, there is no time limit on any of the obligations under paragraphs A-1 through A-9, above.
- C. Non Compete Clauses and The Indian Contract Act, 1972 will be applicable on Vendor for a period of 3 years from the date of agreement until and unless agreed otherwise in written with Fidel Softech Ltd. That At all times while this agreement is in force and after its expiration or termination, Vendor agrees to refrain from disclosing client's details, trade secrets, or other confidential material. Vendor agrees not to approach the client to sans the permission or knowledge of Fidel Softech Ltd.
- D. The governing jurisdiction for dispute resolution in connection of this agreement shall be Republic of India in the state of Maharashtra in English Language.
- E. I understood that my relationship with FIDEL SOFTECH as an Vendor is that of an independent contractor, unless specified otherwise in a separate document signed by FIDEL SOFTECH and me, and that this document is not intended, nor shall it be construed as, changing, in any way, my status as an independent contractor for any past or future work assigned to me by FIDEL SOFTECH.

I certify that I have read & understood this Payment policy & the process written in English and accept the same.

Vendor Signature:-

Date:-